

23NWCV02286 23NWCV02286

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Case Number: 23NWCV02286 Hearing Date: September 1, 2026 Dept: P

CEBALLOS, ET AL. v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 23NWCV02286

HEARING: 09/01/2026 @

9:30 AM

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TENTATIVE ORDER

I.

Defendant American Honda Motor Company,
Inc.'s motion to dismiss for lack of prosecution is GRANTED.

II.

The complaint is DISMISSED without
prejudice.

Moving party to give notice.

Defendant American Honda Motor Company, Inc. (Defendant)
moves to dismiss Plaintiffs Doreen Ceballos and Jorge Osorio's (Plaintiffs)
complaint for lack of prosecution.

Background

On July 25, 2023, Plaintiffs filed this lemon law action

against Defendant and Does 1 through 10, inclusive. The complaint alleges that on December 27, 2019, Plaintiffs entered into a warranty contract with Defendant regarding a 2019 Honda Civic, VIN: 19XFC1F35KE215148 (Subject Vehicle). (Complaint, ¶ 16.) The complaint alleges that defects and nonconformities to warranty manifested themselves within the warranty period. (Complaint, ¶ 17.) The complaint asserts a single cause of action: violation of Song-Beverly Act – breach of express warranty.

On February 18, 2025, the Court granted Plaintiffs' former counsel's motion to be relieved as counsel.

On May 26, 2025, the Court granted in part Defendant's ex parte application and continued the trial date from September 15, 2025 to May 5, 2026.

On March 27, 2026, Defendant filed the instant motion to dismiss.

On March 25, 2026, the Court granted Defendant's motion to deem the truth of the matters specified in its requests for admissions, admitted.

On April 13, 2026, the Court denied in part Defendant's ex parte application to advance the instant motion. The Court granted Defendant's alternative request, to continue the trial date from May 5, 2026 to October 19, 2026.

Legal Standard

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article...on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).) "The court may in its discretion dismiss an action for delay in prosecution...on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.

[...]

(2)

The action is not brought to trial within the following times:

(A) Three years after the action

is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is

commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.”

(Code Civ. Proc., § 583.420, subd. (a).) California Rules of Court, rule

3.1340 authorizes this Court to dismiss cases for lack of prosecution after two years, pursuant to section 583.420(a)(2)(B).

California Rules of Court, rule 3.1342(e) provides factors the Court must consider in making a proper determination:

(1) The court's file in the case

and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;

(2) The diligence in seeking to

effect service of process;

(3) The extent to which the parties

engaged in any settlement negotiations or discussions;

(4) The diligence of the parties in

pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;

(5) The nature and complexity of

the case;

(6) The law applicable to the case,

including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;

(7) The nature of any extensions of time or other delay attributable to either party;

(8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;

(9) Whether the interests of justice are best served by dismissal or trial of the case; and

(10) Any other fact or circumstance relevant to a fair determination of the issue.

Additionally, "[t]he court must be guided by the policies set forth in Code of Civil Procedure section 583.130." (Cal. Rules of Court, rule 3.1342(e).) "The court may grant or deny the motion or, where the facts warrant, the court may continue or defer its ruling on the matter pending performance by either party of any conditions relating to trial or dismissal of the case that may be required by the court to effectuate substantial justice." (Cal. Rules of Court, rule 3.1342(f).) "In order to obtain a discretionary dismissal, the moving party is not required to show actual prejudice stemming from the delay in prosecution." (*Lopez v. State of California* (1996) 49 Cal.App.4th 1292, 1295.)

Discussion

Defendant moves to dismiss this action for lack of prosecution. This motion is unopposed.

Defendant recounts the timeline of this action. Plaintiffs filed their complaint on July 25, 2023. On February 18, 2025, this Court granted Plaintiffs' counsel's motion to withdraw. (Teraoka Decl., ¶ 4.) On March 25, 2026, the Court granted Defendant's motion to deem the truth of the matters specified in requests for admissions, set one, admitted as to Plaintiffs. (Teraoka Decl., ¶ 5.) Plaintiffs neither opposed that motion nor appeared for the hearing. (Teraoka Decl., ¶ 5.)

Defendant argues that Plaintiffs have abandoned this action by taking no action toward this matter and failing to comply with basic discovery obligations. Defendant argues that Plaintiffs' lack of counsel does not excuse

their abandonment of this case.

Here, the Court first finds that this motion is procedurally proper. Defendant served this notice of motion on Plaintiffs at least 45 days before this hearing, on March 27, 2026. (See Cal. Rules of Court, rule 3.1342(a).) Additionally, this action has not been brought to trial or conditionally settled within both two and three years from Plaintiffs' filing. (Code Civ. Proc., § 583.420, subd. (a)(2); Cal. Rules of Court, rule 3.1340(a).)

Next, considering the factors under California Rules of Court, rule 3.1342(e), there is a basis for discretionary dismissal. Defendant provides proofs of service reflecting service upon Plaintiffs concurrently with this motion and prior filings. Defendant shows, and the record confirms, that Plaintiffs have not appeared for Court hearings or provided discovery since the withdrawal of their counsel. The Court takes judicial notice of the records in this action and notes that in Defendant's ex parte application on May 12, 2025, Defendant sought a trial continuance based on Plaintiffs' outstanding discovery as of that date, noting "Plaintiffs (now in pro per) have abandoned this case." (Order, 5/12/25.) Defendant shows that Plaintiffs have not been diligent in this action since at least the date of Plaintiffs' counsel's withdrawal, February 18, 2025. This has necessitated multiple trial continuances and changes in the calendar—including an ex parte application by Plaintiffs' former counsel to advance the motion to withdraw to permit Plaintiffs' more time to find alternative representation. (Order, 2/11/25.) Moreover, the Court notes that this is a standard lemon law action alleging one cause of action for a breach of warranty under the Song-Beverly Act. (Complaint.)

The Court therefore finds that the interest of justice is not served by proceeding to trial. While public policy favors disposition of an action on the merits, this assumes that a plaintiff proceeds with reasonable diligence in its prosecution. (Code Civ. Proc., § 583.130.) Trial has been continued multiple times specifically due to Plaintiffs' failure to participate in discovery and this action as a whole. As this action was filed over three years ago and has gone over one-and-a-half years without any participation by Plaintiffs, without any stated justification for the lack of participation, the Court finds dismissal warranted. "The law helps the vigilant, before those who sleep on their rights." (Civ. Code, § 3527.)

Accordingly, Defendant's motion to dismiss is GRANTED.

The complaint is dismissed without prejudice. (See Code Civ. Proc., § 581, subd. (b)(4), (g) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made under the applicable provisions of Chapter 1.5 (commencing with Section 583.110)."]; Franklin Capital Corp. v. Wilson (2007) 148 Cal.App.4th 187, 214-15.)